

SHADY OAKS FILING INSTRUCTIONS AND PROCEDURAL GUIDE

PIGORS V. SHADY OAKS ET AL. -- CASE NO. 2025-002760-CZ

14TH CIRCUIT COURT, MUSKEGON COUNTY, MICHIGAN

Prepared by: Andrew J. Pigors, Plaintiff pro se

Date: [CURRENT DATE]

Version: MEGA-STACK v1.0

I. FILING COURT AND VENUE

A. COURT INFORMATION

Item	Detail
Court	14th Circuit Court for the County of Muskegon
Address	Michael E. Kobza Hall of Justice, 990 Terrace St, Muskegon, MI 49442
Phone	(231) 724-6241
Judge	Hon. Kenneth Hoopes (assigned)
Case Number	2025-002760-CZ
Case Type	CZ -- General Civil

B. VENUE BASIS

* MCL 600.1621 -- Actions involving real property in Muskegon County

* MCL 600.1605 -- Actions arising from conduct in Muskegon County

- * The mobile home park (Shady Oaks) is located in Muskegon County
- * The tortious acts occurred in Muskegon County

C. JURISDICTIONAL AMOUNT

- * Amount in controversy exceeds \$25,000 (Circuit Court threshold)
- * Total damages estimated at \$2.6M - \$17.6M
- * Circuit Court has unlimited civil jurisdiction

II. FILING THE MEGA-COMPLAINT

A. FILING AN AMENDED/SUPPLEMENTAL COMPLAINT

Since Case No. 2025-002760-CZ is already pending, the Mega-Complaint should be filed as:

Option 1: Amended Complaint (MCR 2.118)

- * If no responsive pleading has been filed, Plaintiff may amend as of right within 14 days of serving the original complaint
- * After 14 days or after a responsive pleading, Plaintiff must file a Motion for Leave to Amend
- * The court "shall freely give leave when justice so requires" (MCR 2.118(A)(2))

Option 2: Supplemental Complaint (MCR 2.118(E))

- * For events occurring after the original complaint (blocked sales, set-out details, custody harm)
- * Court may grant upon reasonable notice and just terms

Recommended Approach: File Motion for Leave to File First Amended Complaint with the Mega-Complaint attached as the proposed amended complaint.

Motion Template:

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STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

Case No. 2025-002760-CZ

Hon. Kenneth Hoopes

ANDREW J. PIGORS, Plaintiff,

v.

SHADY OAKS PARK MHP, LLC, et al., Defendants.

MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

NOW COMES Plaintiff Andrew J. Pigors and moves this Court for leave to file his First Amended Complaint, pursuant to MCR 2.118(A)(2), and in support states:

1. The proposed Amended Complaint adds additional defendants, additional counts, and additional factual allegations based on events that have occurred since the original complaint.

2. The amendment is not offered for any improper purpose and will not unduly prejudice Defendants, who have not yet engaged in substantial discovery.

3. Justice requires that the amendment be permitted to ensure all claims are resolved in a single proceeding.

4. The proposed First Amended Complaint is attached hereto.

WHEREFORE, Plaintiff requests this Court grant leave to file the attached First Amended Complaint.

Respectfully submitted,

Andrew J. Pigors, pro se

[Address, Phone, Email]

Date: _____

B. FILING FEE

Item	Cost
Circuit Court filing fee (already paid for existing case)	\$0 (amendment)
If new case required	\$175 (civil filing fee)
Motion fee	\$20 per motion

C. FEE WAIVER (MC 20 -- FEE WAIVER REQUEST)

If filing fees are a barrier:

1. **Obtain Form MC 20** (Fee Waiver Request) from the court clerk or Michigan Courts website
2. Complete all sections showing:
 - Current income (if any)
 - Monthly expenses
 - Assets and liabilities
 - Number of dependents
 - Receipt of public assistance (if any -- Medicaid, food assistance, SSI)
3. File MC 20 with the complaint or motion
4. If receiving any form of public assistance, fee waiver is typically granted automatically
5. If not receiving assistance, the court evaluates ability to pay

Key Points:

- * Plaintiff's current housing instability and homelessness strongly supports a fee waiver

- * Loss of employment due to Defendants' conduct further supports inability to pay
- * The court cannot deny access to justice based on inability to pay (Boddie v. Connecticut, 401 U.S. 371 (1971))

III. SERVICE OF PROCESS

A. SERVICE REQUIREMENTS PER DEFENDANT

1. Shady Oaks Park MHP, LLC (Michigan LLC)

Method	Authority	Details
Registered Agent	MCR 2.105(D)	Serve registered agent listed with LARA
Officer/Agent	MCR 2.105(D)	Serve any officer, director, or resident agent
LARA Lookup	LARA.michigan.gov	Search "Shady Oaks Park MHP" for registered agent

Steps:

1. Go to <https://cofs.lara.state.mi.us/SearchApi/Search/Search>
2. Search for "Shady Oaks Park MHP LLC"
3. Note the Registered Agent name and address
4. Serve at that address via process server or certified mail

2. Shady Oaks MHP, LLC (Dissolved Michigan LLC)

Method	Details
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Last known registered agent	LARA records (entity may show as "dissolved")
Last known officer/member	LARA annual report filings
Alternate service	If dissolved, serve any known agent/member

Note: A dissolved LLC can still be sued for pre-dissolution conduct. MCL 450.4801 et seq.

3. Homes of America, LLC (Management Company)

Method	Authority	Details
Registered Agent	MCR 2.105(D)	LARA lookup for Michigan registration
If not registered in MI	MCR 2.105(D)(3)	Secretary of state of state of organization
At park office	MCR 2.105(D)	Serve any managing agent at Shady Oaks office

Steps:

1. Search LARA for "Homes of America LLC"
2. If registered in MI, serve registered agent
3. If NOT registered in MI, determine state of organization (likely Delaware or Texas)
4. Serve through that state's Secretary of State via long-arm statute

4. Alden Global Capital, LLC (New York-based)

Method	Authority	Details
Long-arm service	MCL 600.715; MCR 2.105(D)	Michigan long-arm jurisdiction applies
Registered Agent (if MI)	LARA lookup	Check if registered in Michigan
CT Corporation / Registered Agent	Common for large companies	Large firms often use CT Corp or similar
Secretary of State	MCL 600.715(2)	If no MI agent, serve through MI SOS

Steps:

1. Search LARA for "Alden Global Capital" -- check if MI registered

2. If not MI registered, search NY Secretary of State (dos.ny.gov)
3. Note registered agent (likely CT Corporation System or similar)
4. Serve via:
 - a. Michigan SOS if long-arm applies (MCL 600.715)
 - b. Registered agent in state of organization
5. Also send courtesy copy to: Alden Global Capital, LLC, [Principal Office Address -- research needed]

5. Partridge Equity Group

Method	Details
LARA/State SOS lookup	Determine state of organization
Financial records	Check endorsement on \$1,300.26 check for address
Long-arm service	If transacting business in MI (cashing MI checks)

6. Jeremy Brown (Attorney)

Method	Authority	Details
Personal service	MCR 2.105(A)	Process server delivers to Brown personally
Substitute service	MCR 2.105(A)(2)	At Brown's usual place of business
State Bar of Michigan	Lookup tool	Find current address through State Bar

Steps:

1. Go to <https://www.michbar.org/member/memberSearch>
2. Search for "Jeremy Brown"
3. Note office address

4. Serve personally or at office

7. Aaron D. Cox (P69346) (Attorney)

Method	Details
Known address	Law Offices of Aaron D. Cox, PLLC
State Bar lookup	P69346 -- verify current address
Personal service	MCR 2.105(A) at office

8. Henry Brandel (Individual)

Method	Authority	Details
Personal service	MCR 2.105(A)	Process server delivers personally
Substitute service	MCR 2.105(A)(2)	At usual place of abode with person of suitable age
Known address	Neighbor at Shady Oaks -- lot number TBD	

9. Jane/John Doe Park Manager(s)

Method	Details
Discovery	Identity to be determined through interrogatories
Amendment	Once identified, amend complaint to name
Service	Personal service once identified

B. METHODS OF SERVICE**Personal Service (MCR 2.105(A))**

* **Most reliable method**

* Hire a process server (\$50-\$100 per defendant)

- * Process server delivers summons + complaint to defendant personally
- * File Proof of Service (MC 04) with the court

Certified Mail (MCR 2.105(A)(2))

- * Send by certified mail, return receipt requested
- * Must be restricted delivery (to named addressee only)
- * Keep green card (return receipt) as proof
- * File Proof of Service with return receipt attached

Michigan Secretary of State Service (for out-of-state entities)

- * MCL 600.715 -- long-arm jurisdiction
- * File two copies of summons + complaint with MI SOS
- * SOS forwards to defendant
- * Pay SOS service fee (\$10)

C. SERVICE DEADLINES

Requirement	Timeline
Service after filing	Within 91 days of filing (MCR 2.102(D))
Extension	Motion for extension if needed
Proof of Service	File within 7 days of service

IV. PARALLEL ADMINISTRATIVE COMPLAINTS

A. LARA COMPLAINT (MICHIGAN MOBILE HOME COMMISSION)

What to File

A formal complaint with the Michigan Department of Licensing and Regulatory Affairs (LARA), Bureau of Construction Codes, Manufactured Housing Section.

How to File

1. **Online:** <https://www.michigan.gov/lara/bureau-list/bcc/manufactured-housing>

2. **By Mail:**

LARA - Bureau of Construction Codes

Manufactured Housing Division

P.O. Box 30254

Lansing, MI 48909

3. **Phone:** (517) 241-9313

What to Include

Item	Content
Park name	Shady Oaks Mobile Home Community, 1977 Whitehall Rd, Muskegon County
Management company	Homes of America, LLC
Violations	Blocked sales (MCL 125.2312c-d); unauthorized rent increases; habitability failures; dissolved entity operating; unauthorized fees
Evidence	Copies of ledgers, lease, EGLE violations, text messages, title
Relief requested	Investigation; enforcement action; penalties; corrective orders

Regulatory Violations to Allege

1. Operating a manufactured housing community in violation of MHCA
2. Interfering with homeowner's right to sell (MCL 125.2312c)
3. Unauthorized rent increases without proper notice (MCL 125.2312a)
4. Failure to maintain community in safe, habitable condition
5. Operating under a dissolved entity name
6. Imposing unauthorized fees and charges
7. Retaliatory eviction following complaints

B. HUD COMPLAINT (FEDERAL -- FAIR HOUSING)

What to File

A housing discrimination complaint with the U.S. Department of Housing and Urban Development (HUD).

How to File

1. **Online:**
https://www.hud.gov/program_offices/fair_housing_equal_opp/online-complaint
2. **Phone:** 1-800-669-9777 (HUD hotline)
3. **By Mail:**

HUD Chicago Regional Office

Ralph H. Metcalfe Federal Building

77 West Jackson Blvd, Room 2101

Chicago, IL 60604

What to Include

Item	Content
Respondents	Shady Oaks Park MHP LLC; Homes of America LLC; Alden Global Capital
Address	1977 Whitehall Rd, Lot 17, Muskegon County, MI
Type of discrimination	Disparate treatment; retaliation; interference with housing rights
Discriminatory acts	Blocked sales; manufactured arrears; unlawful eviction; harassment
Basis	Familial status (father with minor child); retaliation for exercising rights
Evidence	Same as LARA complaint
Relief	Investigation; conciliation; enforcement; damages

Important HUD Deadlines

- * File within **1 year** of the last discriminatory act
- * HUD investigates and determines reasonable cause within 100 days (often extended)
- * Can elect federal court or HUD ALJ hearing

C. MICHIGAN ATTORNEY GENERAL CONSUMER COMPLAINT

How to File

1. **Online:** <https://www.michigan.gov/ag/consumer-protection/consumer-complaints>

2. Focus on unfair/deceptive business practices
3. Include evidence of ledger fraud, blocked sales, dissolved entity operations

V. DISCOVERY PRIORITIES

A. PHASE 1 -- IMMEDIATE (WITH COMPLAINT OR FIRST 30 DAYS)

Interrogatories to All Defendants

No.	Topic
1	Identify all entities in the Alden Global / HOA / Shady Oaks corporate structure
2	Identify all officers, directors, managers, and employees of each entity (2023-present)
3	Identify the park manager(s) who sent text messages to prospective buyers
4	Identify all persons who participated in the July 17, 2025 set-out
5	State the complete account history for Plaintiff's lot (all charges, credits, payments)
6	Identify who hired Attorney Jeremy Brown and for what purpose
7	State whether Shady Oaks MHP, LLC was dissolved and when
8	Identify all prospective buyers who applied for lot-lease approval for Lot 17
9	State all communications with the Muskegon County Sheriff regarding the set-out
10	Describe the management agreement between HOA and Shady Oaks entities

Document Requests to All Defendants

No.	Documents Requested
1	Complete, unredacted ledger/account history for Lot 17 (2023-present)
2	All leases, lease amendments, and correspondence with Plaintiff
3	All communications (email, text, letter) regarding Plaintiff, Lot 17, or Plaintiff's home
4	All communications with prospective buyers of Plaintiff's home
5	All documents related to the eviction proceeding
6	All documents related to the July 17, 2025 set-out
7	Corporate organizational documents for each entity
8	Management agreements between HOA and park entities
9	Financial statements for each entity (3 years)
10	Insurance policies covering the park operations
11	All LARA/regulatory correspondence regarding Shady Oaks
12	All EGLE correspondence regarding sewage conditions
13	Jeremy Brown's engagement letter and all filings
14	Inventory/receipts from the set-out
15	Park rules and regulations (all versions, 2023-present)

Requests for Admission

No.	Admission Requested
1	Shady Oaks MHP, LLC was dissolved before July 10, 2025
2	Attorney Cox filed documents on behalf of Shady Oaks MHP, LLC after dissolution
3	Plaintiff's \$1,300.26 check was cashed by Partridge Securities
4	Park manager sent text messages to a prospective buyer regarding Plaintiff's home
5	Plaintiff was the lawful titleholder of the home at Lot 17 at all relevant times
6	Prospective buyers applied for lot-lease approval and were denied
7	EGLE issued violations to the park for sewage conditions
8	No proper inventory was made during the July 17, 2025 set-out
9	Henry Brandel participated in removing property from Plaintiff's home

10	A "FREE" sign was placed on Plaintiff's home within 24 hours of the set-out
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B. PHASE 2 -- AFTER INITIAL RESPONSES (60-90 DAYS)

Depositions

Priority	Deponent	Key Topics
1	Park Manager (Doe)	Text messages; blocked sales; eviction decision; set-out
2	HOA Regional Manager	Enterprise structure; policy directives; eviction authority
3	Aaron D. Cox	Authority to represent dissolved entity; knowledge of dissolution
4	Jeremy Brown	Res judicata filing; who retained him; knowledge of facts
5	Henry Brandel	Set-out participation; who directed him; property taken
6	EGLE Inspector	Sewage violations; park compliance history
7	Prospective Buyers (3)	Sale discussions; park interference; manager communications

Subpoenas Duces Tecum

To	Documents
Bank (Plaintiff's)	Complete check image showing Partridge endorsement
Bank (Defendants')	Account records showing receipt of Plaintiff's payments
LARA	Complete regulatory file for Shady Oaks
EGLE	Complete violation/compliance file for Shady Oaks
Muskegon County Sheriff	Set-out report; photos; communications with park
MDHHS	Records of payments made on Plaintiff's behalf
TrueNorth Community Services	Records of payments made on Plaintiff's behalf

C. PHASE 3 -- EXPERT DISCOVERY

Expert	Purpose	Estimated Cost
Forensic Accountant	Analyze ledger fraud; quantify overcharges	\$5,000 - \$15,000
Real Estate Appraiser	FMV of home; damages from diminished value	\$1,000 - \$3,000
Custody Evaluator	Impact of homelessness on custody/child welfare	\$3,000 - \$8,000
Psychologist	Emotional distress damages; child harm	\$3,000 - \$8,000

VI. CLASS ACTION POTENTIAL ANALYSIS

A. POTENTIAL CLASS DEFINITION

"All current and former residents of Shady Oaks Mobile Home Community who, since [date], have been subjected to unauthorized rent increases, unauthorized fees, ledger manipulation, blocked home sales, or retaliatory eviction practices by Defendants."

B. RULE 23 / MCR 3.501 ANALYSIS

Factor	Assessment
Numerosity	Shady Oaks has [TBD] lots -- if a substantial percentage affected, satisfied
Commonality	Common questions: ledger practices, fee structures, sales policies, entity fraud
Typicality	Plaintiff's claims are typical of class if other residents faced similar treatment
Adequacy	Pro se plaintiff may face adequacy challenges -- consider co-counsel
Predominance	Common questions likely predominate over individual issues
Superiority	Class action superior to individual suits for pattern claims

C. CLASS ACTION CONSIDERATIONS

Advantages:

- * Multiplies damages across all affected residents
- * Greater leverage against corporate defendants
- * Attracts attorney interest (contingency fee on larger pool)
- * Addresses systemic practices, not just individual harm
- * Greater media attention and regulatory interest

Challenges:

- * Pro se plaintiff typically cannot represent a class (MCR 3.501 may require counsel)
- * Certification process is complex and resource-intensive
- * May slow individual claims
- * Defendants will vigorously oppose certification

Recommendation: File individual complaint NOW; explore class certification later with co-counsel or after attracting attorney interest through individual case success.

D. HOW TO ATTRACT ATTORNEY INTEREST

1. File the Mega-Complaint as drafted (shows sophistication of claims)
2. Win early motions (motion to amend, discovery motions)
3. Obtain key evidence (ledger fraud, Partridge check, manager texts)

4. Contact:

- Michigan Legal Services
- Michigan Poverty Law Program
- National Consumer Law Center
- Michigan mobile home advocacy organizations
- Private attorneys who handle manufactured housing cases

5. RICO treble damages and conversion treble damages create strong contingency-fee incentive

VII. IMMEDIATE ACTION CHECKLIST

#	Action	Deadline	Status
1	Finalize Mega-Complaint	ASAP	[DRAFTED]
2	Prepare Motion for Leave to Amend	ASAP	[PENDING]
3	LARA entity search (all defendants)	Before filing	[PENDING]
4	State Bar search (Brown, Cox)	Before filing	[PENDING]
5	File MC 20 Fee Waiver (if needed)	With filing	[PENDING]
6	File Motion + Amended Complaint	Target: [DATE]	[PENDING]
7	Arrange service for all defendants	Within 91 days	[PENDING]
8	Serve discovery (interrogatories, doc requests, admissions)	With complaint or within 28 days	[PENDING]
9	File LARA complaint	Within 30 days of filing	[PENDING]
10	File HUD complaint	Within 30 days of filing	[PENDING]
11	File AG consumer complaint	Within 30 days of filing	[PENDING]

12	Preserve all evidence (texts, photos, camera footage)	IMMEDIATELY	[PENDING]
13	Contact Mitchell Shafer for formal affidavit	Before filing	[PENDING]
14	Obtain certified title records	Before filing	[PENDING]
15	Obtain certified LARA entity records	Before filing	[PENDING]

VIII. KEY LEGAL AUTHORITIES QUICK REFERENCE

MICHIGAN STATUTES

Statute	Subject
MCL 750.159f-j	Michigan RICO
MCL 600.2918	Wrongful eviction damages
MCL 600.2919a	Conversion -- treble damages
MCL 565.108	Slander of title
MCL 600.5720	Retaliatory eviction
MCL 125.2301-2330	Mobile Home Commission Act
MCL 554.631-641	Truth in Renting Act
MCL 600.6013	Prejudgment interest
MCL 600.715	Long-arm jurisdiction
MCL 450.4801+	Dissolved LLC liability

MICHIGAN COURT RULES

Rule	Subject
MCR 2.105	Service of process
MCR 2.118	Amended complaints
MCR 2.302-313	Discovery
MCR 3.501	Class actions
MCR 2.625	Costs and attorney fees

FEDERAL STATUTES

Statute	Subject
42 USC 3601-3631	Fair Housing Act
42 USC 1983	Civil Rights -- deprivation under color of law
42 USC 1988	Attorney fees in civil rights cases

KEY CASE LAW

Case	Holding
Troxel v. Granville, 530 U.S. 57 (2000)	Parental rights are fundamental liberty interest
State Farm v. Campbell, 538 U.S. 408 (2003)	Punitive damages framework
Dennis v. Sparks, 449 U.S. 24 (1980)	Private parties in concert with state actors
Boddie v. Connecticut, 401 U.S. 371 (1971)	Court access cannot be conditioned on payment
Texas Dept of Housing v. Inclusive Communities, 576 U.S. 519 (2015)	FHA disparate impact
Javins v. First Nat'l Realty, 428 F.2d 1071 (D.C. Cir. 1970)	Implied warranty of habitability
Kay v. Ehrler, 499 U.S. 432 (1991)	Pro se fee recovery in civil rights

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